

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505001	BROWN vs RAWSON	MOTION FOR DEFAULT JUDGMENT

Tentative Ruling:

Default was entered as to Defendant, Christina Anderson on 7/6/2026. The matter is now set for an Order to appear and show cause, if any, why sanctions should not be imposed for failure to file default judgment (CRC 3.110) at 8:30 AM in Department 6 on 1/5/2027.

The motion is moot.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600382	TBU, INC. vs CITY OF CALIMESA	DEMURRER ON COMPLAINT

Tentative Ruling:

Moving party: Defendant City of Calimesa

Responding party: Plaintiff TBU, Inc.

Plaintiff TBU, Inc., a license contractor, entered into a written agreement with Oak Valley Development Company ("OVDC"), a developer, to construct and install sewer, domestic water, and recycled water systems for Oak Valley Town Center. OVDC breached the agreement by failing to pay Plaintiff. However, following the breach, OVDC filed for bankruptcy and obtained a discharge of its debt. Plaintiff alleges that Government Code section 66499, et seq. and various sections of the Calimesa Municipal Code impose mandatory duties on Defendant City of Calimesa (or "City") to require a developer to furnish a bond or security as a condition for City's approval of the work to begin. City approved OVDC's tentative parcel map and permitted OVDC to proceed with the work without obtaining a bond or security from OVDC. Plaintiff alleges City's breach of its mandatory duty caused Plaintiff damages in the amount of \$977,448.06 plus interest.

The operative Complaint, filed January 13, 2026, asserts a sole cause of action for Failure to Discharge Mandatory Duties.

City now demurs to the sole cause of action because it is time barred because this action was not filed under the 90-day time frame mandated by California's Subdivision Map Act (the "Act"). City argues Plaintiff has pled no fact that would excuse its untimely lawsuit or claim. Even if Plaintiff's claim was timely filed, Plaintiff's contract was with OVDC, not the City.

In opposition, Plaintiff argues City ignores a separate stand-alone mandatory duty set forth in the City of Calimesa Municipal Code. Alternatively, Plaintiff seeks leave to amend.

In reply, City points out Plaintiff seemingly concedes Government Code section 66499.37 applies to Plaintiff's sole cause of action. City contends Plaintiff's allegation that the Municipal Code also imposed a duty upon the City to obtain payment bonds is irrelevant to the applicable statute of limitations. City reiterates that Plaintiff's claim is time barred under section 66499.37.

Analysis

I. Extrinsic Evidence

Plaintiff's opposition relies on matters outside the Complaint that are not judicially noticeable or for which Plaintiff failed to request judicial notice for. The Court may not consider extrinsic evidence in ruling on the demurrer. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman's Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not part of any court record].) Accordingly, only the allegations contained in the Complaint will be considered pursuant to Code of Civil Procedure section 430.41.

II. Request for Judicial Notice (RJN)

The Court **GRANTS** City's RJN for Exhibits A & B pursuant to Evidence Code section 452, subdivision (b).

III. Meet & Confer

Before filing a demurrer, the moving party **shall** meet and confer, **at least 5 days before a responsive pleading is** due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§430.41, subd. (a), 435.5, subd. (a)(1)-(2).) The moving party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).) The parties complied. (Liebeskind Decl., ¶4.)

IV. Legal Standard – General Demurrer

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) Demurrers for failure to state a cause of action are commonly referred to as "general" demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as "special demurrers." (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

Statute of Limitations. A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 412.)

V. Merits

City demurs on the grounds that Plaintiff's claims are time barred under Government Code section 66499.37, which cannot be tolled by the discovery rule.

Government Code section 66499.37 governs the limitations for bringing "[a]ny action or proceeding to attack, review, set aside, void, or annul the decision of an advisory agency, appeal board, or legislative body concerning a subdivision, or of any of the proceedings, acts, or determinations taken, done, or made prior to the decision, or to

determine the reasonableness, legality, or validity of any condition attached thereto...,” which must be commenced and service of summons effected within 90 days after the date of the decision. (Gov. Code, § 66499.37.)

The Complaint alleges Plaintiff entered into an agreement with OVDC to install sewer and water systems for the Oak Valley Town Center subdivision project in Calimesa. (Compl., ¶9.) On February 6, 2023, City approved the Subdivision Improvement Agreement between City and OVDC. (RJN Exh. B.) Under Government Code section 66499.37, Plaintiff had 90 days from February 6, 2023, to bring suit. Thus, Plaintiff’s complaint filed on January 13, 2026, almost three years later, is untimely.

Notably, Plaintiff fails to address City’s section 66499.37 argument. Indeed, Plaintiff asserts, “it is not even necessary to mention the mandatory duty set forth in the [Act] because a mandatory duty is imposed on the City by its own Municipal Code, which is entirely independent of the [Act].” (Opp., pg. 3:4-7.) Plaintiff ignores the fact that Plaintiff’s own Complaint cites Government Code section 66499, et seq. as the basis of its sole cause of action. Moreover, the failure to respond to a point is “equivalent to a concession.” (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.)

Plaintiff argues Calimesa Municipal Code section 17.15.240, subdivision (A)(2), imposes a mandatory duty on City to require that bonds or securities be submitted by the developer. However, whether the municipal code imposes a duty on City still does not negate the fact Plaintiff’s claim is time barred under Government Code section 66499.37. Plaintiff does not provide authority that the municipal code provides for a longer statute of limitations.

Calimesa Municipal Code section 17.15.240, subdivision (A), provides, “Security to guarantee the performance of any act or agreement shall be in the following amounts except as otherwise provided by subsection (c) of Section 66499.3 of the Subdivision Map Act...” There is no language in this section or in section 17.15.230 addressing the requirement of improvement securities that extends the statute of limitations under Government Code section 66499.37. The Court, sua sponte, can take judicial notice of the City of Calimesa Municipal Code pursuant to Evidence Code section 452, subdivisions (c) and (h).

“To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the “gravamen” of the cause of action. [Citations.] “[T]he nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (*Hensler v. City of Glendale* (1994) 8 Cal.4th 1, 22-23.) Here, the gravamen of Plaintiff’s cause of action relates to the City’s decision concerning the subdivision. “Section 66499.37 applies to claims that arise from or involve a controversy under the [Act], could have been brought under the [Act], or overlap with an [Act] claim.” (*Santa Clarita Organization etc. v. County of Los Angeles* (2024) 105 Cal.App.5th 1143, 1150.) Thus, Government Code section 66499.37 applies.

The Court **SUSTAINS** the demurrer.

VI. Leave to Amend

It is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment. (*Goodman v.*

Kennedy (1976) 18 Cal.3d 335, 349.) “Liberality in permitting amendment is the rule; if a fair opportunity to correct any defect has not been given.” (*Angie M. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) **Given this is Plaintiff’s first pleading, the Court grants Plaintiff’s request to amend. Leave to amend within 21 days is granted.**

The Court continues the CMC to 10/26/2026 at 8:30 a.m. in Dept. 6.